

2014 SCC OnLine All 2727

(BEFORE VINEET SARAN AND ATTAU RAHMAN MASOODI, JJ.)

M/s. Forntier Alloy Steels Limited Petitioner

v.

Dakshinanchal Vidyut Vitran Nigam Ltd. Thru' M.D.

& 2 Others Respondents

Counsel for Petitioner:- Mayank Agrawal

Counsel for Respondent:- Baleshwar Chaturvedi, A.N. Singh

Writ - C No. - 11083 of 2014

Decided on February 20, 2014

Hon'ble Vineet Saran, J.

Hon'ble Attau Rahman Masoodi, J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as Sri. Baleshwar Chaturvedi, learned counsel for the respondents no. 1 and 2 and Sri. A.N. Singh for the respondent no. 3.

By means of this writ petition, the petitioners have prayed for quashing the demand notice dated 4.9.2013 issued by the respondent No. 2. Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioners submit that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (*Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.*).

Learned counsel for the respondents submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred to above it is provided, without prejudice to the right and contention of the parties, that until further orders of this Court the respondents are restrained from demanding additional security from the petitioners.

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